



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

December 18, 2024

Memorandum for: Deputy Commissioner, Trials

Re: **Lieutenant Michael Reddington**
Tax Registry No. 894882
Staten Island Court Section
Disciplinary Case No. 2023-29440

The above named member of the service appeared before Assistant Deputy Commissioner Vanessa Facio-Lince on September 17, 2024, and was charged with the following:

DISCIPLINARY CASE NO. 2023-29440

1. Said Lieutenant Michael Reddington, while assigned to the 101st Precinct on or about and between November 5, 2022, and July 27, 2023, on approximately two (2) occasions, caused inaccurate entries to be made in Department records, to wit: City Time System database and Overtime Reports that reflected he had worked time periods he had not worked.

A.G. 304-05, Page 1, Paragraph 4

PERFORMANCE ON DUTY

2. Said Lieutenant Michael Reddington, while assigned to the 101st Precinct on or about November 5, 2022, engaged in conduct prejudicial to the good order and efficiency of the Department in that on one (1) occasion, Lieutenant Reddington submitted an overtime report and received cash payment for one (1) hour of overtime he did not perform.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

3. Said Lieutenant Michael Reddington, while assigned to the 101st Precinct on or about July 27, 2023, engaged in conduct prejudicial to the good order and efficiency of the Department in that on one (1) occasion, Lieutenant Reddington received time and pay for approximately two (2) hours and eight (8) minutes that he did not work.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

4. Said Lieutenant Michael Reddington, while on duty and assigned to the 101st Precinct on or about June 7, 2023, while in uniform and in public view was recorded by

an individual known to the Department, smoking a cigar in his personal vehicle which was parked on the side of the 101st Precinct.

A.G. 304-07, Page 2, Paragraph 14**PERSONAL APPEARANCE**

5. Said Lieutenant Michael Reddington, while assigned to the 101st Precinct on or about September 2, 2023 and September 28, 2023 was in possession of an expired 2014 NYPD Placard which was displayed inside of his personal vehicle.

P.G. 219-29, Note and Additional Data**DISTRIBUTION AND USE OF
NYPD RESTRICTED PARKING
PERMITS**

In a Memorandum dated October 29, 2024, Assistant Deputy Commissioner Facio-Lince found Lieutenant Reddington guilty of all Specifications (after Lieutenant Reddington pled guilty to Specification Nos. 1, 2, 3, and 5) in Disciplinary Case No. 2023-29440. The facts and circumstances presented in the Memorandum from Assistant Deputy Commissioner of Trials, Facio-Lince, have been carefully considered. I agree with the findings, but I do not agree with the proposed penalty recommendation of separation from the Department.

After reading the memorandum and analyzing the facts of this matter, I approve of the findings but disapprove of the penalty. Separation from the Department is not warranted.

Lieutenant Reddington pleaded guilty to making inaccurate entries in the City Time database and the overtime reports he submitted. Respondent received compensation for which he was not entitled. Furthermore, he was also charged with possessing an expired 2014 NYPD restricted parking permit. Lastly, he was found guilty of smoking a cigar inside his personal vehicle while in uniform and public view.

In light of the misconduct, the presumptive penalty is appropriate in this case. Further, restitution and deductions from Lieutenant Reddington's time and leave balances are appropriate.

After careful consideration of the evidence presented at trial and the Department's Disciplinary System Penalty Guidelines, I have determined Lieutenant Reddington will receive a penalty of thirty-five (35) vacation days, one (1) year dismissal probation, and have an adjustment of three hours and eight minutes (3:08) taken from his time and leave balances for the charged misconduct.



Jessica S. Tisch
Police Commissioner



POLICE DEPARTMENT

October 29, 2024

-----X
In the Matter of the Charges and Specifications :

- against - :

Lieutenant Michael Reddington :

Tax Registry No. 894882 :

Staten Island Court Section :

Case No.

2023-29440

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Jamie Moran, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Roger Blank, Esq.
2201 Baxter Lane, Suite 10295
Bozeman, MT 59718

To:

HONORABLE THOMAS G. DONLON
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Lieutenant Michael Reddington, while assigned to the 101 Precinct on or about and between November 5, 2022, and July 27, 2023, on approximately two (2) occasions, caused inaccurate entries to be made in Department records, to wit: City Time System database and Overtime Reports that reflected he had worked time periods he had not worked.

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PERFORMANCE ON DUTY

2. Said Lieutenant Michael Reddington, while assigned to the 101 Precinct on or about November 5, 2022, engaged in conduct prejudicial to the good order and efficiency of the Department in that on one (1) occasion, Lieutenant Reddington submitted an overtime report and received cash payment for one (1) hour of overtime he did not perform.

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PROHIBITED CONDUCT

4. Said Lieutenant Michael Reddington, while on duty and assigned to the 101 Precinct on or about June 7, 2023, while in uniform and in public view was recorded by an individual known to the Department, smoking a cigar in his personal vehicle which was parked on the side of the 101 Precinct.

A.G. 304-07, Page 2, Paragraph 14

PERSONAL APPEARANCE

5. Said Lieutenant Michael Reddington, while assigned to the 101 Precinct on or about September 2, 2023, and September 28, 2023 was in possession of an expired 2014 NYPD Placard which was displayed inside of his personal vehicle.

P.G. 219-29, Note and Additional Data

DISTRIBUTION AND USE OF NYPD RESTRICTED PARKING PERMITS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on September 17, 2024. Respondent, through his counsel, entered a plea of Not Guilty to Specification 4 (smoking a cigar while in uniform and in public view), and pled Guilty to Specifications 1, 2, 3 and 5. The Department called Sergeant [REDACTED] as a witness. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, this Tribunal finds Respondent guilty of all five specifications and recommends service retirement.

ANALYSIS

At the hearing, Respondent admitted to the misconduct alleged in Specifications 1, 2, 3 and 5. Respondent testified that on November 5, 2022, and July 27, 2023, he made inaccurate entries in the City Time system database and in the overtime reports he submitted. Those entries reflected that Respondent had worked time periods he had not worked. As a result of submitting those inaccurate overtime reports, Respondent received compensation for which he was not entitled. The only contested charge is Specification 4 which alleges that on June 7, 2023, while in uniform and in public view, Respondent was smoking a cigar inside his personal vehicle.

The Department Advocate called Sergeant [REDACTED], who was the IAB investigator assigned to Respondent's case. Sergeant [REDACTED] testified that he was involved in the investigation of Respondent's case from its inception and that he obtained the video footage which formed the basis for Specification 4. The Department Advocate submitted two video recordings in evidence (Department's Exhibits 8 and 9) depicting the events that unfolded on June 7, 2023. It is undisputed that these recordings were captured by a civilian "YouTuber" and aired on his YouTube channel.

Department's Exhibit 9, begins with a male's voice narrating and complaining about a police vehicle parked in the crosswalk adjacent to the 101 precinct. The person recording then enters the 101 Precinct and as he enters, Respondent can be seen, in uniform, leaving the precinct. The person recording verbally engages Respondent and communicates his complaint regarding the vehicle parked in the crosswalk as Respondent is walking toward his personal vehicle. Respondent proceeds to get into his car as the person recording informs him that this interaction is being televised on his YouTube channel. The person recording then walks away from Respondent's car as he is making derogatory comments about Respondent and the Police Department in general.

Department's Exhibit 8 appears to be a continuation of Department's Exhibit 9. That video begins with the same person recording as he is approaching Respondent who is seated in his car, in uniform, smoking a cigar. When the person recording asks Respondent if he's smoking a cigar while "on the clock," Respondent replied, "I'm on my break." (Dept. Ex. 8 at 00:19) Respondent continued smoking a cigar for several minutes while he was being recorded. The person recording circled Respondent's car, making inflammatory comments while recording Respondent who continued smoking a cigar. At the 05:20 mark, two female pedestrians are captured walking a few feet behind Respondent's vehicle. At 06:22, Respondent exited his vehicle and walked toward the precinct. Respondent engaged in casual conversation with the person recording for a few more minutes before he walked into the precinct and the video ends.

As to the incident that occurred on November 5, 2022, Respondent testified that he was working as a "patrol supervisor" that day and responded late to a job causing him to work one hour of overtime. According to Respondent, he forgot to submit an overtime slip that day. He was out for his two regularly scheduled days off and when he returned to the command, he

submitted an overtime slip for two hours instead of one hour. Respondent asserted that this was merely an “administrative” error on his part and that there was no “malicious” intent.

Respondent emphasized that he was not attempting to receive compensation for an extra hour of work. (Tr. 49-50)

Similarly, regarding the incident that occurred on July 27, 2023, Respondent testified that he was assigned to a “mobile field force” transit detail. As a result of this assignment, his tour of duty was changed to 1245 x 2130 hours. Although Respondent was scheduled to start his tour at 1245, he was late and did not start until approximately 1453 hours. Respondent testified that he worked until approximately 0300, so he submitted an overtime slip for five and a half hours of overtime. However, this did not take into account that he started his tour late. Respondent acknowledged that he did not “submit a 28” [leave of absence form] upfront for the two hours and eight minutes” that he was late. As a result of this inaccuracy, Respondent received compensation for time he did not actually work. (Tr. 51)

Respondent also admitted that he was in possession of an expired 2014 NYPD parking placard that he failed to return as required by the Patrol Guide. Respondent testified that he resided in [REDACTED] prior to his divorce, but subsequently moved to an apartment in the [REDACTED]. Respondent claimed that he could not find the placard for several years until he was moving boxes from his prior residence to his new apartment and found the misplaced placard. He did not specify when he found the placard or why he did not immediately return it when he found it. Respondent testified that the placard was on his passenger seat and “somebody called 311 complaining about the plaque,” so a sergeant and a deputy inspector came to the 101 precinct (where he was assigned at the time) and requested that Respondent return the placard.

Respondent retrieved it and gave it to the officers. He further acknowledged being in possession of the placard beyond the time period he was authorized to have it. (Tr. 54-55)

As to Specification 4, Respondent testified that on the date of the incident, his personal vehicle was parked on the side street of the precinct which is a dead-end street. He further asserted that his car was not readily observable by members of public walking on the street. Respondent avowed that at the time he was smoking the cigar in his personal vehicle he did not observe any other civilians in the immediate vicinity of his vehicle except for the civilian recording him on his phone. (Tr. 59-60)

Respondent acknowledged that he was offered a resolution of a "Command Discipline and four hours" to address the alleged misconduct, but he rejected this penalty because he has "never seen anyone disciplined for smoking in uniform." (Tr. 60) Respondent also testified that he should be commended for handling himself well with "a professional agitator (referring to the You Tuber that recorded the interaction) that harasses cops all over the place." (Tr. 62) Moreover, Respondent testified that he felt strongly that he was not in public view at the time of the alleged incident and he would not accept discipline for something he did not do. He added that he was "doxxed publicly on social media with this," and considered that to be punishment enough. Respondent concluded his testimony by stating that he is being targeted by members of the Department who have a "personal bias" against him. Respondent added that he believes the Department is trying to "entice" him to retire because of his age. (Tr. 66)

Respondent pled guilty to all charged misconduct except Specification 4. As corroborated by video evidence, Respondent was in uniform, smoking a cigar in his personal vehicle which was parked on a public street on the date of the incident. The question for this Tribunal is whether Respondent was in "public view" when smoking the cigar while in uniform.

Administrative Guide 304-07 contains guidelines regarding officers' personal appearance while on duty to ensure that members of service look professional when on duty. It dictates how uniforms should be worn, provides guidance for personal hygiene and contains certain prohibitions regarding members' physical appearance while on duty. Administrative Guide 304-07, Paragraph 14, specifically states: "While in uniform in public view, do not chew gum, use tobacco in any form or hold toothpicks in the mouth." Although "public view" is not specifically defined by the Administrative Guide, this Tribunal understands the phrase to mean within normal visual range by a person on a public street or sidewalk adjacent to real property.

Respondent testified that at the time he was smoking a cigar in his personal vehicle while in uniform, he was not in "public view" because he did not observe any members of the public in his immediate vicinity. However, the "YouTuber" who recorded Respondent's actions on the date in question was clearly standing on a public street where Respondent's personal vehicle was parked and in a position to see Respondent smoking a cigar while in uniform. In fact, the person recording the interaction verbally engaged Respondent from the moment he exited the precinct until he got into his car. Thus, Respondent knew that this person was not only following him but recording his every move. Yet, Respondent intentionally lit a cigar in his car knowing that he was being recorded by a member of the public who informed him that the interaction was being broadcasted on YouTube.

Furthermore, Respondent acknowledged that the dead-end street where his vehicle was parked on the date in question is not private property and that any member of the public can walk on that street despite the fact that he did not personally see anyone walking by his car. However, Department's Exhibit 8 at 05:20 depicts two female pedestrians walking a few feet behind Respondent's vehicle as he is smoking his cigar in uniform. While there is no evidence that these

pedestrians actually observed Respondent smoking the cigar, he was within "public view." This Tribunal, therefore, finds no merit in Respondent's contention that he was not in public view at the time of the alleged misconduct. Respondent's actions not only evince a wanton disregard for the Administrative Guide's prohibition against using tobacco while in uniform and in public view, but demonstrate a serious lapse in judgement. Accordingly, this Tribunal finds Respondent Guilty of Specification 4.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 11, 1988, has been found guilty of all five Specifications. The Department Advocate recommended service retirement for Respondent and supported their recommendation by asking this Tribunal to consider his disciplinary history, his rank as a supervisor, and the similarities between prior disciplinary events and the current acts of misconduct. Respondent's attorney, conversely, argued that the charges in this case constitute relatively minor misconduct, which would normally have been adjudicated at the command level. Counsel also emphasized that Respondent took responsibility for the misconduct by pleading guilty to four of the five specifications at bar. However, at the hearing, instead of taking responsibility for his actions, Respondent expressed his belief that the charges and specifications were brought against him only because he is being "targeted" by his

Commanding Officer, who wants Respondent to retire against his will. In sum, the Tribunal did not find that Respondent was remorseful for his misconduct.

While this Tribunal agrees that these charges are relatively minor, Respondent's disciplinary history reveals that this misconduct is part of a recurring pattern of obstinate resistance to compliance with Department guidelines and paramilitary structures. I find it significant and concerning that prior disciplinary penalties and monitoring have not deterred Respondent from engaging in further misconduct. Although these charges would not ordinarily warrant separation, under the unique circumstances presented in this case, and pursuant to the principles of progressive discipline outlined in the Disciplinary Penalty Guidelines, this Tribunal recommends service retirement for Respondent.

In 2019, Respondent forfeited 15 suspension days after pleading guilty to failing to instruct a subordinate to use leg restraints on a hospitalized prisoner, resulting in a prisoner escape. Not long thereafter, in 2020, Respondent was found guilty at trial of retaliating against a member of service blocking his car by angrily placing garbage on their vehicle. In a separate incident, Respondent was found guilty of failing to remain alert while on duty. In a second case, adjudicated at the same time, Respondent was found guilty of sending multiple profane and disparaging text messages to another member of service. [Respondent admitted he sent texts a lieutenant in which he texted, "Go Fuck Your Mother You Piece of Shit [rat emoji] RAT"!!!!" and "That's Not What I heard Dick. I'll Enjoy your Mother's Pussy in D.R. next week Anderson!!!!" and "Go lick Aramboles Ass Rookie" and "Tell your Fag Boss I'm still not retiring. I Got Family in Rockaway. I'll just Move out there [happy face emojis]... [thumbs up emoji] and [beer mugs emoji]." Respondent received a disciplinary penalty of the forfeiture of 20 vacation days. *See Disciplinary Case Nos. 2019-20082 & 2019-19964* (July 6, 2020)

Following the disciplinary decision in 2020, Respondent was transferred to the 101 Precinct. There, he was given an opportunity for a fresh start. Unfortunately, it did not work out that way as Respondent has been found guilty of new charges. Respondent has revealed an inability to conform to Department Guidelines despite being subjected to disciplinary penalties in the past and being transferred to a different command.

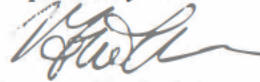
When Respondent appeared before this Tribunal he not only exhibited a lack of remorse, but just as in his prior cases, he tried to justify what he had done by asserting he has not seen other members of service receive discipline for similar misconduct. Equally troubling was the fact that Respondent incomprehensibly insisted that he did not smoke in “public view” despite glaring evidence to the contrary. Respondent’s lack of accountability in this case, as well as in his prior cases, illustrates a complete unwillingness or inability to even recognize the manner in which the Department expects its members to conduct themselves.

Having carefully examined the record and the related relevant factors in its entirety – Respondent’s serious lapse in judgement in this case, his rank as a supervisor with substantial experience and seniority, his recent prior adjudications and his lack of remorse for his actions, the Tribunal opines that Respondent has exhibited a long standing pattern of misconduct which has not been ameliorated with prior discipline. The Department has higher expectations for supervisors, including their ability to exercise sound judgment and to be deliberate in their actions so as to set a good example for subordinates. A member of service with the rank and years of experience held by this Respondent should be a leader and role model, exhibiting the Department’s mission of courtesy, professionalism and respect. Instead, this Respondent has demonstrated that he is unwilling to modify his inappropriate behavior despite being granted several opportunities to do so. Respondent’s continued employment runs afoul of the good order

and efficiency of the Department and its well-established culture of accountability and individual responsibility.

Accordingly, the Tribunal recommends service retirement for this Respondent.

Respectfully submitted,



Vanessa Facio-Lince
Assistant Deputy Commissioner Trials

DISAPPROVED

DEC 18 2024

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
LIEUTENANT MICHAEL REDDINGTON
TAX REGISTRY NO. 894882
DISCIPLINARY CASE NO. 2023-29440

Respondent was appointed to the Department on July 11, 1988. On his three most recent annual performance evaluations, he twice received 2.5 ratings of "Below Competent" for 2022 and 2023, and received a 3.0 rating of "Competent" for 2021. He has been awarded five medals for Meritorious Police Duty and 65 medals for Excellent Police Duty.

In 2020, Respondent forfeited 20 vacation days for misconduct that was the subject of two disciplinary cases. In the first matter, Respondent was found guilty of placing garbage on the vehicle of another member of service and, in a separate incident, failing to remain alert while on duty. In the second case, Respondent was guilty of sending multiple profane and disparaging text messages to another member of service.

Previously, in 2019, Respondent forfeited 15 suspension days after pleading guilty to failing to instruct a subordinate to use leg restraints on a hospitalized prisoner, resulting in the loss of the prisoner. In 1994, Respondent forfeited 15 vacation days for discourtesy and failure to safeguard a prisoner.

Respondent was placed on Level 1 Disciplinary Monitoring in May 2018; that was upgraded to Level 2 Discipline Monitoring in September 2022. Level 2 Monitoring remains ongoing.

For your consideration.

Vanessa Facio-Lince
Assistant Deputy Commissioner Trials